

Utility Permit

Sec. 66-189. Requirements.

- (a) The applicant for a permit under this article shall notify the planning director's office at least 24 hours before starting any work under the permit. Further, the applicant shall notify the planning director's office when the work authorized under the permit has been completed so that an inspection can be made by the department's representative.
- (b) The full and entire expenses and cost of the facility installation and maintenance shall be borne by the utility owner and the utility owner shall make necessary arrangements for traffic over the point during such work as may be directed by the county planning director or designated representative of the board of commissioners. The utility owner shall place the necessary barricades, warning signs, signals, lights and, if necessary, guards for the protection of the traveling public, and further agrees by the acceptance of the permit to keep and hold the county harmless from any and all damages caused by negligence on the part of the utility owner, its agents, servants, officers or employees, or contractors, engaged in doing such work, or any injuries or damages suffered by anyone as a result thereof. All traffic safety measures will be in accordance with the state department of transportation's Manual of Uniform Traffic Control Devices, a copy of which shall be available for inspection at the office of the planning director.
- (c) All facilities shall be installed in accordance with the state department of transportation's Utility Accommodation Policy and Standard where applicable. The document will be maintained on file in the office of the county planning director.
- (d) The work shall be performed in a workmanlike manner and all installations shall be done by the utility owner in such a way as to leave free flows in drainage ditches, pipes, culverts or other surface water drainage facilities of the roadway or its connections. No part of any installation shall be attached to any portion of a bridge, culvert or other structure of the roadway without special authorization of the county planning director or designated representative of the board of commissioners after detailed information is furnished as such representative may require.
- (e) The installation of a facility as authorized shall be subject to the inspection, direction and control of the county planning director or designated representative of the board of commissioners, who shall be notified before work is commenced.
- (f) Prior to the commencement of any work authorized by permit, where applicable, notification to the utilities protection center of the nature of the work to be performed is required.
- (g) All land disturbing activities shall be conducted in accordance with the provisions of section 34-31 et seq., pertaining to erosion and sedimentation control, and other applicable county ordinances.
- (h) The applicant shall ensure that facilities installed on county rights-of-way are kept free from all vegetative growth which create a visible obstruction to such facility. If facilities are not maintained in such a manner, the county may elect to undertake this work and charge the applicant accordingly.

(Ord. of 10-27-1998, §§ 2--9)